

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

June 09, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
102	Liu vs. Tran 25-01487015	1. Demurrer to Second Amended Complaint 2. Case Management Conference Defendant Brittany R. Eichin ("Eichin") demurs to the Second Amended Complaint (SAC) of plaintiff Shu Xia Liu ("Plaintiff") on the ground that the seventh cause of action for aiding and abetting forgery fails to plead sufficient facts. The Court notes that counsel for Eichin failed to meet and confer with opposing counsel in person, via telephone, or via videoconference as required. Counsel is advised that the failure to comply with all applicable rules and statutes in the future may result in a hearing being taken off calendar, where appropriate. In the SAC, Plaintiff alleges that Eichin notarized three documents that contained forged signatures: two August 31, 2023 Grant Deeds upon which Defendant

		Tran forged Plaintiff's name and one May 31, 2024 Grant Deed which contained a signature purporting to be Defendant Jiao's but which Defendant Jiao did not sign actually. Plaintiff alleges that Eichin notarized these documents despite knowing that Plaintiff and Defendant Jiao had not personally appeared before her, contrary to her certification under penalty of perjury. Further, Eichin knew or should have known that the signatures were not that of Plaintiff or Defendant Jiao and that the documents were being used to unlawfully and fraudulently transfer title of the properties. "Liability may [] be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (Saunders v. Superior Court (1994) 27 Cal.App.4th 832, 846.) "California courts have long held that liability for aiding and abetting depends on proof the defendant had actual knowledge of the specific primary wrong the defendant substantially assisted." (Casey v. U.S. Bank Nat. Assn. (2005) 127 Cal.App.4th 1138, 1145.) Eichin argues that Plaintiff's allegation that Eichin falsely certified that Plaintiff personally appeared before her despite knowing that Plaintiff did not appear is shown to be false by the two deeds attached to the SAC, which demonstrate that Plaintiff signed the document and appeared before Eichin. This argument lacks merit. While the Court will accept as true the contents of exhibits attached to the pleading that conflict with the factual allegations and disregard those contradictory allegations, that rule does not apply here. Plaintiff is alleging that Eichin falsely certified under penalty of perjury that Plaintiff appeared before her when the documents were notarized. Eichin cannot
--	--	---

	point to those same documents and argue that Plaintiff did appear and sign them simply because that is what the documents say, to defeat those allegations. Eichin further argues that Plaintiff does not have standing as a real party in interest to allege that Tran forged Jiao’s signature on the May 23, 2024 Grant Deed and only Jiao can properly assert such a claim as the individual whose signature was allegedly forged. Except as otherwise provided by statute, “every action must be prosecuted in the name of the real party in interest. . . .” (Code Civ. Proc., § 367.) “A person who invokes the judicial process lacks standing if he, or those whom he properly represents, ‘does not have a real interest in the ultimate adjudication because [he] has neither suffered nor is about to suffer any injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented.’ [Citation.]” (Schmier v. Supreme Court (2000) 78 Cal.App.4th 703, 707.) Here, Plaintiff is alleging that title to her property was disrupted by the forging of Defendant Jiao’s signature on the Grant Deed and Eichin’s notarization of the Grant Deed despite knowing that the signature was not Defendant Jiao’s. Because Plaintiff is claiming significant injury caused by the alleged forgery, Plaintiff has standing. Lastly, Eichin argues that Plaintiff has failed to plead that Eichin knew that a tort was being committed or that Eichin intended to give assistance to committing the tort. In Casey, the court considered the issue of whether the knowledge element of an aiding and abetting claim had been sufficiently alleged. The plaintiffs asserted a claim for aiding and abetting breach of fiduciary duty against banks used in a scheme to divert investor funds and alleged that the banks knew of the breaches of fiduciary duty and assisted by allowing the misconduct. The court held that the allegations were insufficient because they failed to establish that the banks had
--	--

actual knowledge of the primary violation in which they purportedly participated. (127 Cal.App.4th at p. 1148.) The court explained that while the banks may have been suspicious about certain account activities, mere suspicion alone does not give rise to tort liability. (Id. at p. 1151.) The court further noted that, on the other hand, had the plaintiffs alleged that the banks knew that corporate funds were being stolen and knowingly assisted in its laundering, those allegations would suffice to state a claim for aiding and abetting. (Ibid.)

In Neilson v. Union Bank of California, N.A. (C.D. Cal. 2003) 290 F.Supp.3d 1101, analyzed by the Casey court, the court held that the complaint adequately alleged that the defendant banks had actual knowledge of the primary violation, a Ponzi scheme that defrauded investors out of millions of dollars. (Id. at p. 1120.) The

Neilson court noted that the complaint alleged that the banks actively participated in the conduct by their utilization of atypical banking procedures to service the accounts, and noted that the necessary knowledge for aiding and abetting could be inferred based on those allegations. (Id. at pp. 1120-1121.)

Here, Plaintiff does not only allege that Eichin knew of the forgeries but also that Eichin furthered the misconduct accomplished through the forgeries by engaging in atypical practices, i.e., by certifying under penalty of perjury that Plaintiff and Defendant Jiao had personally appeared before her despite the fact that they had not. These allegations are sufficient to support an inference of the necessary knowledge against Eichin at the pleading stage.

Eichin requests judicial notice of a police report she filed with the Orange County Sheriff's Department in which she purportedly showed the officer her notary journal entries for August 31, 2023 and the journal entries do not match the names on the grant deeds provided in the SAC. "While [courts] may take judicial

		notice of court records and official acts of state agencies [citation], the truth of matters asserted in such documents is not subject to judicial notice.” (Arce v. Kaiser Foundation Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482.) Therefore, Eichin’s request for judicial notice is DENIED. In light of all the above, Eichin’s demurrer to the SAC is OVERRULED. Eichin is ORDERED to file an answer to the SAC within 20 days. Moving party to give notice.
103	Abinante vs. Collins 25-01457824	1. Demurrer to Second Amended Complaint 2. Motion to Strike Portions Of Second Amended Complaint 3. Case Management Conference Defendants Matthew Collins, Smarttecc, Inc. (“Smarttecc”), Validus DX, LLC (“Validus”), MedLab2020, Inc. (“MedLab2020”) and MVML, Inc. (“MVML” and collectively, “Defendants”) demur to the SAC of plaintiffs Matthew Abinante; Rume Health, LLC; and Rume Medical Group, Inc. (collectively, “Plaintiffs”) and move to strike certain allegations. Defendants Collins, Smarttecc, Validus, and MedLab2020’s Demurrer These defendants’ previous Demurrer to the causes of action for breach of fiduciary duty, declaratory relief, conversion, unjust enrichment, fraudulent concealment, negligence, unfair business practices, accounting, and implied and equitable indemnity was overruled on December 4, 2025. The Court finds these causes of action remain sufficiently pled. Further, to the extent Defendants’ Demurrer raises any new arguments against these causes of action that could have, but were not, raised in their prior Demurrer, the Court disregards

those arguments as improper. (Code Civ. Proc., § 430.41(b).) Thus, the Demurrer to these causes of action is OVERRULED.

First Cause of Action for Breach of Fiduciary Duty

Collins argues that the newly-added first cause of action fails because it is based on legal advice provided by Collins but Collins is not alleged to be a lawyer. However, the fiduciary relationship alleged is not one of attorney-client but one based on Collins's role as an executive officer and director. "It is without dispute that in California, corporate directors owe a fiduciary duty to the corporation and its shareholders and now as set out by statute, must serve 'in good faith, in a manner such director believes to be in the best interests of the corporation and its shareholders.' " (Berg & Berg Enterprises, LLC v. Boyle (2009) 178 Cal.App.4th 1020, 1037.)

Collins further argues that this cause of action fails because directors and officers are entitled to rely upon information and opinions from counsel. However, the SAC alleges that Collins knew that converting Covid Clinic to a non-profit would eliminate Abinante's equity and limit his ability to reap financial benefits from the company and did not disclose this material fact to Abinante. The claim is not based upon reliance on a legal opinion from counsel but on the failure to disclose material information.

Collins contends that this claim is barred by the sham pleading doctrine because the FAC alleged that it was an attorney, Michael Penley, who made representations that the conversion would not change Covid Clinic's operations at all and it could be converted back at any time. These allegations do not conflict with the allegation that Collins did not disclose that the conversion would impact Abinante's equity and other financial benefits. Thus, the sham pleading doctrine does not apply.

	Based on all the above, the Demurrer to the first cause of action is OVERRULED. Third Cause of Action for Fraud Defendants argue this cause of action fails because the SAC admits that Abinante agreed that Validus would be solely owned by Smarttecc and only vaguely refers to some “overall agreement,” the terms of which are not alleged. They further argue the claim is based upon irrelevant communications with Kayla Collins, a nonparty, and there are no specific misrepresentations that could support a fraud cause of action. Lastly, they allege the economic loss rule bars the claim. Defendants’ arguments lack merit. The third cause of action alleges in detail the misrepresentations made by Collins upon which it relies regarding the share of Validus’ profits with Abinante. Plaintiffs allege that Collins represented on numerous dates that Abinante would receive his share of profits. While the SAC references statements made by Kayla Collins, the cause of action plainly does not rest upon those statements, which are merely included for context. Further, tort damages are not barred in contract cases where the contract was fraudulently induced. (<i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 839; see also <i>id.</i> at p. 843 [“Fraudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court”].) Based on the above, the Demurrer to the third cause of action is OVERRULED. Defendant MVML’s Demurrer MVML argues that the sole basis for liability against it is successor liability and alter ego and those theories remain inadequately pled in the SAC. Because not one fact about MVML is alleged in the SAC, MVML argues the claims fail.
--	--

	Plaintiffs’ claims against MVML are based upon allegations of successor liability and alter ego. On December 4, 2025, the Court held that the allegations of successor and alter ego liability were insufficiently pleaded. The SAC adds no significant new allegations in support of these theories of liability against MVML and the theories remain inadequate. “To recover on an alter ego theory, a plaintiff need not use the words “alter ego,” but must allege sufficient facts to show a unity of interest and ownership, and an unjust result if the corporation is treated as the sole actor.” (Leek v. Cooper (2011) 194 Cal.App.4th 399, 415.) Here, Plaintiffs allege no such facts. They also do not allege any facts showing that the general rule of successor nonliability does not apply. (Daniell v. Riverside Partners I, L.P. (2012) 206 Cal.App.4th 1292, 1300.) Further, Plaintiffs do not argue that they can presently allege any additional facts that could support successor or alter ego liability against MVML. Thus, MVML’s Demurrer is SUSTAINED without leave to amend. (Jones v. Aetna Casualty & Surety Co. (1994) 26 Cal.App.4th 1717, 1722.) Motion to Strike Defendants move to strike the first cause of action for breach of fiduciary duty on the ground that it goes beyond the scope of leave to amend granted upon the Court’s sustaining of their prior Demurrer. When a demurrer is sustained with leave to amend, a new cause of action may be added if it is within the scope of the order granting leave to amend. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023 [following an order sustaining a demurrer, “[t]he plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.”].) Further, the addition of a new cause of action is proper when it “directly responds to the court’s reason for sustaining
--	--

the earlier demurrer.” (Patrick v. Alacer Corp. (2008) 167 Cal.App.4th 995, 1015.)

Here, the first cause of action arises out of the same general set of facts and transactions as those set forth in the FAC and, notably, the FAC asserted a cause of action for breach of fiduciary duty against all Defendants, including Collins. The Court finds the first cause of action to be within the scope of its order granting leave to amend. Thus, the Motion to Strike the first cause of action is DENIED.

Defendants move to strike the successor liability allegations on the ground that they are factually insufficient. In light of the Court’s sustaining of MVML’s Demurrer, the Court DENIES the Motion to Strike as to these allegations as MOOT.

Defendants move to strike the alter ego allegations on the ground that they are mere legal conclusions with no factual support. The Court agrees with Plaintiffs that the correct procedural vehicle to attack these allegations as insufficient is a demurrer. Thus, the Motion to Strike the alter ego allegations is DENIED.

Because the fraud-based causes of action are sufficiently pled, Defendants’ Motion to Strike the claim for punitive damages is DENIED.

Defendants move to strike the claims for statutory damages and civil remedies under Civil Code section 3344 and Penal Code section 530.5, arguing that these damages are not available to Plaintiffs. Defendants further argue that Plaintiffs have no right to damages under section 3344 because the statute applies only to commercial use and no commercial use is alleged in the SAC.

Civil Code section 3344(a)(1) provides, in relevant part: “Any person who knowingly uses another’s name, voice, signature, photograph, or likeness, in any manner, on or in products, merchandise, or goods, or

		for purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods, or services, without that person's prior consent, or, in the case of a minor, the prior consent of their parent or legal guardian, shall be liable for any damages sustained by the person or persons injured as a result thereof." While the statute does not necessarily require a separate cause of action for violation of the same, Defendants are correct that the SAC does not allege that Abinante's name, voice, signature, photograph, or likeness was used on or in products, merchandise, or goods, or for purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods, or services without his consent. Therefore, the Motion to Strike the claim for statutory damages under Civil Code section 3344 is GRANTED with 15 days leave to amend. The scope of leave to amend shall extend only to the claim for damages under section 3344. Plaintiffs allege that Defendants violated Penal Code section 530.5 and that they are entitled to all civil remedies available for the violation. While Plaintiffs are not entitled to assert a cause of action for violation of this Penal Code, Defendants cite no authority showing that they cannot claim entitlement to any available civil remedies for such a violation. Thus, the Motion to Strike the claim for civil remedies for violation of Penal Code section 530.5 is DENIED. Defendants' Motion to Strike the request for injunctive relief is DENIED, as injunctive relief is a proper remedy under the UCL. (Bus. & Prof. Code, § 17203.) Defendants' Motion to Strike the prayer for rescission or reformation is DENIED. While Plaintiffs seek damages under their theories of liability, they may also plead in the alternative to seek rescission or reformation. Lastly, Defendants move to strike paragraphs 86 and 91, which contain statements made by third parties. Defendants argue these statements cannot support
--	--	--

		Plaintiffs’ fraud claims because there are no allegations explaining why anything the third parties said should be attributed to any Defendant. As discussed above, the statements are not intended to provide the basis of the fraud claim. Instead, they are intended to provide context to the relationship between the parties. Thus, the Court finds that they are not improper and the Motion to Strike paragraphs 86 and 91 is DENIED. The Court denies Defendants’ requests for judicial notice on the ground that the material is not relevant to the determination of the issues. (State Compensation Ins. Fund v. ReadyLink Healthcare, Inc. (2020) 50 Cal.App.5th 422, 442-443.) Moving party to give notice.
104	Smart Solutions, Inc. vs. Magic Brush Car Wash, LP 24-01423896	Motion to Be Relieved as Counsel of Record Bryan Theis/Theis Law Group, PC (“Moving Attorney”) moves to be relieved as Counsel of Record for Defendant/Cross-Complainant Magic Brush Car Wash, LP. The Motion is CONTINUED to July 14, 2026, at 10:00 a.m. in Department C25. The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. (California Rules of Court, rule 3.1362(d).) The proof of service indicates that two individuals were served with the moving papers: (1) Hagop “Jack” Kofdarali at 139 Radio Road, Corona, CA 92879, and (2) Scott G. Nathan (via email), Law Offices of Scott G. Nathan, APC, 12241 Newport Avenue, Suite 100, North Tustin, CA 92705. (ROA 56.) It is not clear from the proof of service that the client, Defendant/Cross-Complainant Magic Brush Car Wash, LP, was served with the notice of motion and motion, the declaration, and the proposed order. The proof of

		service does not indicate Hagop “Jack” Kofdarali’s relation to the client sufficient that show that service is proper upon this individual. As a result, the Court CONTINUES the motion to be relieved as counsel to July 14, 2026, at 10:00 a.m. in Department C25. Moving Attorney to file proof of service of the moving papers on the client. Said proof of service to be filed no later than nine (9) court days before the continued hearing date. In addition, Moving Attorney to lodge an updated proposed order reflecting the current trial date no later than nine (9) court days before the continued hearing date. The proposed order must be lodged with the court with the moving papers and specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (California Rules of Court, rule 3.1362(e).) Moving Party to give notice.
105	Safavi vs. Ghadiri 25-01522424	1. Motion for Judgment on the Pleadings 2. Case Management Conference Defendant Nasrin Ghadiri (“Defendant”) moves for judgment on the pleadings as to the first cause of action for breach of oral contract and second cause of action for promissory and constructive fraud on the grounds that: (1) the claims are barred by the statute of limitations, (2) a condition precedent was never satisfied and therefore no contractual duty to Plaintiff arose, and (3) the fraud based claims are legally deficient and duplicative. First, the Court finds that the motion complies with the timing requirements set forth in Code of Civil Procedure sections 438 and 439. (Code Civ. Proc., §§ 438, subd. (f)(2) and 439, subd. (a).) It does not appear that the meet and confer requirements were met but,

		from the record before it, the Court does not find that meet and confer efforts would be productive at this juncture. Next, “[t]he grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 438, subd. (d).) “Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (Code Civ. Proc., § 438, subd. (d).) “The motion for judgment on the pleadings performs the function of a general demurrer.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.) “Therefore, it admits all material and issuable facts pleaded.” (Ibid.) A “motion for judgment on the pleadings, like a demurrer, raises only questions of law.” (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1065.) “In a case involving a motion for judgment on the pleadings, our Supreme Court has said: ‘[W]e treat the properly pleaded allegations of [the] complaint as true, and also consider those matters subject to judicial notice. [Citations.] ‘Moreover, the allegations must be liberally construed with a view to attaining substantial justice among the parties.’ [Citation.] ‘Our primary task is to determine whether the facts alleged provide the basis for a cause of action against defendants under any theory.’ [Citation.]’” (Mendoza v. Continental Sales Co. (2006) 140 Cal.App.4th 1395, 1401 [citing (Alliance Mortgage Co. v. Rothwell (1995) 10 Cal.4th 1226, 1232].) “The motion provided for in this section may be granted with or without leave to file an amended
--	--	---

	complaint or answer, as the case may be.” (Code Civ. Proc., § 438(h)(1).) A. REQUEST FOR JUDICIAL NOTICE Defendant requests judicial notice of two documents: (1) Certified translation of July 1, 2023 text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract, attached as Exhibit A and (2) Plaintiff's sworn declaration dated October 31, 2025, filed in Orange County Superior Court Case No. 30-2025-01520822-CL-UD-CJC, attached as Exhibit B. The request for judicial notice is DENIED as the Certified translation of July 1, 2023, text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract. This piece of evidence is not something that the Court may take judicial notice of and is not appropriate to consider when determining a motion for judgment on the pleadings. The request for judicial notice is GRANTED as to Plaintiff's declaration filed in Case No. 2025 01520822. “[P]leadings and declarations are records of a court of this state and therefore qualified for permissive judicial notice under Evidence Code section 452, subdivision (d).” (Tucker v. Pacific Bell Mobile Services (2012) 208 Cal.App.4th 201, 219.) B. CAUSES OF ACTION Based on the Court's interpretation of the operative Complaint, the Complaint contains two causes of action: (1) breach of oral contract and (2) promissory and constructive fraud. Defendant addresses an emotional distress claim, but based on the Court's reading of the Complaint, it appears that Plaintiff is
--	---

	claiming emotional damages, not asserting a cause of action for intentional infliction of emotional distress. As such, the Court will only address the causes of action for (1) breach of oral contract and (2) promissory and constructive fraud. 1. Breach of Oral Contract a. Statute of Limitations A cause of action for breach of oral contract is subject to a two-year statute of limitations pursuant to Code of Civil Procedure section 339. (Code Civ. Proc., § 339.) “A cause of action for breach of a contract generally accrues upon the alleged breach.” (Spears v. Spears (2023) 97 Cal.App.5th 1294, 1304–1305.) Here, the Court finds that it is unable to determine whether Plaintiff’s cause of action for breach of contract is barred by the statute of limitations based on the allegations in the operative Complaint and the judicially noticeable declaration of Plaintiff. Based on the Complaint and Plaintiff’s declaration, it is not clear when Plaintiff allegedly completed renovations and when Defendant breached the alleged oral contract by failing to pay Plaintiff the bargain for consideration for the renovations. The Complaint does not allege a date that the renovations were completed or when Defendant allegedly breached the oral agreement. The only dates set forth in the Complaint relate to when Plaintiff was injured and when he received an eviction notice from Defendant. Similarly, Plaintiff’s declaration that Defendant filed in support of the motion states: “In 2023, I became sick, required surgery, and was attending school at the same time to establish an
--	---

	independent life. Despite these difficulties, I continued and completed the renovation. After the renovation was finished and the value of the property increased, Plaintiff refused to sell the house.” From this declaration, the Court is only able to discern that Plaintiff was sick, required surgery, and was attending school in 2023. The alleged renovation was completed after these occurrences, but the declaration does not expressly state when the renovation was complete (Plaintiff performance) and when Defendant refused to sell or transfer the promised ownership share (Defendant’s breach). As such, the Court is unable to calculate whether Plaintiff’s breach of oral contract cause of action is barred by the applicable statute of limitations at this stage in the litigation. b. Elements of Breach of Oral Contract “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) “[T]he complaint must indicate on its face whether the contract is written, oral, or implied by conduct.” (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458–459.) Express and implied “contract[s] are identical in that they require a meeting of minds or an agreement [citation].” (Aton Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230.) “Thus, it is evident that both the express contract and contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established.” (Ibid.)
--	--

Moreover, “[i]n order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) “This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Ibid.)

Here, the Complaint sufficiently alleges all elements of a breach of oral contract. Plaintiff alleges that the parties entered into an oral agreement “regarding the renovation, sale, and reinvestment of a residential property.” Specifically, “Plaintiff agreed to perform a complete renovation of the Defendant’s residential property.” Then, “[u]pon completion, the Defendant would immediately sell the property, obtain financing from the proceeds and purchase another fixer-upper chosen by the Plaintiff.” In addition, “Defendant would transfer one-half ownership of the new property to the Plaintiff and full cooperate in continuing the business venture.”

“After Plaintiff’s full performance, the Defendant – without legal justification – refused to sell the property or transfer the promised ownership share.” Defendant alleges the following damages in support of the breach of contract cause of action: (1) “Defendant’s breach caused profound and ongoing harm to the Plaintiff, including contractual and ownership right despite complete performance,” (2) “[m]issed professional opportunities during the real-estate boom, despite Plaintiff’s marketing and management expertise,” (3) “[i]nterruption of education and resulting financial and psychological damage,” and (4) “[i]solation and emotional distress caused by financial hardship during a critical life stage for career and family formation.”

The allegation above is sufficient to state a cause of action for breach of oral agreement. The motion for judgment on the pleadings is DENIED as to the first cause of action for breach of oral contract.

		2. Promissory and Constructive Fraud a. Statute of Limitations “A cause of action for fraud accrues when the aggrieved party discovers the facts constituting the fraud.” (Austin v. Medicis (2018) 21 Cal.App.5th 577, 588.) “At that point, the plaintiff has three years to bring an action.” (Id. [citing Code Civ. Proc., § 338, subd. (d)].) For the same reasons discussed above, the Court is unable to determine whether Plaintiff’s cause of action for promissory and constructive fraud cause of action is barred by the applicable statute of limitations. b. Elements of Promissory Fraud “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “ ‘Promissory fraud’ is a subspecies of the action for fraud and deceit.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud.” (Ibid.) “An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 [citing Chelini v. Nieri (1948) 32 Cal.2d 480, 487, 196 P.2d 915 (“tort of deceit” adequately pled where plaintiff alleges “defendant intended to and did induce plaintiff to employ him by
--	--	--

	making promises ... he did not intend to (since he knew he could not) perform” (fn. omitted)]). “In such cases, the plaintiff’s claim does not depend upon whether the defendant’s promise is ultimately enforceable as a contract.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “If it is enforceable, the [plaintiff] ... has a cause of action in tort as an alternative at least, and perhaps in some instances in addition to his cause of action on the contract.” (Ibid.) “Recovery, however, may be limited by the rule against double recovery of tort and contract compensatory damages.” (Ibid.) Here, the Court finds that Plaintiff has not sufficiently stated a cause of action for promissory fraud. Plaintiff has not alleged any “knowledge of falsity” or “intent to defraud.” There are no allegations that Defendant knew the falsity of her misrepresentations or intended to defraud Plaintiff. The motion for judgment on the pleadings is GRANTED as to the second cause of action for promissory fraud WITH LEAVE TO AMEND. c. Elements of Constructive Fraud “The elements of the cause of action for constructive fraud are: (1) fiduciary relationship; (2) nondisclosure (breach of fiduciary duty); (3) intent to deceive, and (4) reliance and resulting injury.” (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 517, fn. 14.) “Actual reliance and causation of injury must be shown.” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1131, as modified on denial of reh’g (Feb. 27, 2014).) “Unlike actual fraud, constructive fraud depends on the existence of a fiduciary relationship of some kind, and this must be alleged.” (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 516–517.) “Constructive fraud is a unique species of fraud applicable only to a fiduciary
--	---

		or confidential relationship.” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1131, as modified on denial of reh'g (Feb. 27, 2014).) “Constructive fraud arises on a breach of duty by one in a confidential or fiduciary relationship to another which induces justifiable reliance by the latter to his prejudice.” (Ibid.) “A confidential relationship exists when one party gains the confidence of the other and purports to act or advise with the other’s interest in mind.” (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 517, fn 15.) As stated above, Plaintiff has not alleged the Defendant’s intent to deceive at the time of the nondisclosure. Additionally, Plaintiff has not alleged the requisite fiduciary relationship between Plaintiff and Defendant. The motion for judgment on the pleadings is GRANTED as to the second cause of action for constructive fraud WITHOUT LEAVE TO AMEND.
106	Saldarriaga vs. Javaherly 24-01373839	Plaintiff/ Cross-Defendant, Defendant/ Cross-Complainant Daniel Toledo (“Toledo”) moves pursuant to Code of Civil Procedure section 877.6(a)(1) for a determination that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was made in good faith. Toledo also asks the Court to bar all present and future parties to this action from making claims against Daniel Toledo for equitable comparative contribution, or partial or comparative indemnity, based on comparative indemnity, based upon comparative negligence or comparative fault. The determination of a good faith settlement with one or more tortfeasors or co-obligors is governed by Code of Civil Procedure section 877.6. Pursuant to Code of Civil Procedure section 877.6(a)(2):

		“In the alternative, a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a nonsettling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement.” (Code Civ. Proc., § 877.6, subd. (a)(2).) “The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing.” (Code Civ. Proc., § 877.6, subd. (b).) “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).) “If the good faith settlement is contested, section 877.6, subdivision (d), sets forth a workable ground rule for
--	--	--

the hearing by placing the burden of proving the lack of good faith on the contesting party.” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.) Section 877.6(d) states: “[t]he party asserting the lack of good faith shall have the burden of proof on that issue.” (Code Civ. Proc., § 877.6, subd. (d).)

“The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute.” (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499–500.) “Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (Id. at 500.)

Determination of a good faith settlement require consideration of the following Tech Bilt factors: (1) a rough approximation of plaintiff’s total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) financial conditions and insurance policy limits of settling defendants, and (6) existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

“[P]ractical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement.” (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) “[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.” (Id.)

However, “the damages are often speculative, and the probability of legal liability therefore is often uncertain....” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1262.)

Here, Daniel Toledo applies for a determination that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was made in good faith. Toledo also asks the Court to bar all present and future parties to this action from making claims against Daniel Toledo for equitable comparative contribution, or partial or comparative indemnity, based on comparative indemnity, based upon comparative negligence or comparative fault.

Based on the arguments and evidence proffered, the Court finds that the settlement amounts of \$25,000 to Evelyn Martinez and \$25,000 to Brandon Rodriguez as well as the waiver of costs to Maite Saldarriaga are appropriate and made in good faith. There appears to be no evidence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling parties.

No parties opposed the motion. As established in the authority above, the burden of proving the lack of good faith is placed on the contesting party. Here, there is no contesting party and therefore this burden has not been met.

In addition, the Court will consider the parties’ failure to oppose Toledo’s motion as an implied concession to the merit of Toledo’s arguments and evidence presented therein. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and Westside Center Associates v.

		Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].) The Court finds that the Tech Bilt factors weigh in favor of finding that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was reached in good faith and therefore the Application for Determination of Good Faith Settlement is GRANTED. Moving party to give notice.
107	Hamidian vs. Avis Budget Group, Inc. 20-01174350	1. Motion for Determination of Good Faith Settlement x 2 2. Motion to Contest Good Faith Settlement 1) Motion for Determination of Good Faith Settlement Defendants, Avis Budget Group, Inc. (“Avis”) and County of Orange (collectively, “Defendants”) move for an order determining that the settlement between Plaintiff, Afsaneh Hamidian (“Plaintiff”), and Defendants was made in good faith, and that the Court dismiss, with prejudice, any and all complaints and cross-complaints in favor of Defendants in this action pursuant to California Rules of Court, rule 3.182, and bar any future claims against Defendants for equitable comparative contribution, partial indemnity or comparative indemnity, based on comparative negligence or comparative fault, pursuant to Code of Civil Procedure section 877.6. No opposition has been filed. Code of Civil Procedure section 877.6 provides in pertinent part:

		(a)(1) Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. ... [¶] ... [¶] (b) The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counter affidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing. (c) A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (d) The party asserting the lack of good faith shall have the burden of proof on that issue. (Code Civ. Proc. § 877.6(a)-(d).) Under the statute, the burden of proof is on the party opposing the good faith determination. (Code Civ. Proc. § 877.6(d).) Thus, absent any challenge, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (City of Grand Terrace v. Superior Court (1987) 192 Cal. App. 3d 1251, 1261.) In other words, only when the application is contested or a motion for good faith
--	--	--

		determination is opposed does the court consider and weigh the Tech-Bilt standards. (Ibid.) Here, although Defendants filed a motion, there is no challenge or opposition. The evidence submitted indicates that Plaintiff and Defendants, Avid Budget Group, Inc. and County of Orange reached a settlement in the amount of \$400,000. (ROA 466, Declaration of Jennifer Caponegri (“Caponegri Decl.”), ¶¶ 1, 3-4.) Defendants’ counsel also provides that Plaintiff alleged various personal injuries from the subject incident, including but not limited to a right shoulder surgery, a cervical spine surgery and facial plastic surgery procedures, and that Plaintiff’s known medical bills total \$282,008.33, with insurance adjustments to \$110,118.76. (Id., ¶ 2.) The motion sets forth the ground of good faith for the settlement being that the settlement amount is fair as to Defendants’ proportionate liability in light of the evidence establishing that Jeff Oviedo & Associates, Inc. and CTG Construction Inc. share liability for the subject incident, and that but for the failures of Jeff Oviedo & Associates, Inc. and CTG Construction Inc. to shave down the bolts when they relocated the key box, the subject incident would not have occurred, as well as that Project Manager, Jeff Oviedo & Associates, Inc. accepted responsibility for failing to shave down the bolts after relocating the key box with the subcontractor, CTG Construction Inc. The motion also provides a brief background of the case in that the matter arises from an incident that occurred on September 2, 2020, in the John Wayne Airport parking garage in Orange County; that the John Wayne Airport parking garage was undergoing renovations as part of a reconfiguration project; that the renovations
--	--	--

		required that an Avis key box be moved; that the Project Manager, Jeff Oviedo & Associates, Inc., engaged subcontractor, CTG Construction Inc., to assist in relocating the key box; that upon relocation, two bolts were left exposed where the key box had been removed; that Plaintiff was walking when she tripped on the bolts; and that an employee of Jeff Oviedo & Associates, Inc. accepted responsibility for failing to shave down the bolts. Based on the showing above, the Court GRANTS Defendants, Avis and County of Orange’s motion for determination of good faith settlement. The Court GRANTS Defendants’ request to dismiss Plaintiff’s Complaint as to Defendants only. (Code Civ. Proc. § 877.6(c); California Rules of Court, rule 3.1382.) Defendants do not indicate or specify that there is any current cross-complaint brought against either of them containing claims barred by Code of Civil Procedure section 877.6(c).) Defendants Avis and the County of Orange are to give notice. 2) Motion for Determination of Good Faith Settlement and 3) Motion to Contest Good Faith Settlement Defendant/Cross-Defendant/Cross-Complainant, CTG Construction, Inc. (“CTG”), moves for an order determining that the settlement between Plaintiff, Afsaneh Hamidian (“Plaintiff”), and CTG was made in good faith. CTG also requests dismissal with prejudice as to any and all complaint and cross-complaints in favor of CTG in this action, pursuant to California Rules of Court, rule 3.1382, and bar any future claims against Defendant for equitable comparative
--	--	--

contribution, partial indemnity or comparative indemnity, based on comparative negligence or comparative fault, pursuant to Code of Civil Procedure section 877.6.

In response, Defendant/Cross-Defendant/Cross-Complainant, Jeff Oviedo & Associates, Inc. (“JOA”) moves to contest Defendant/Cross-Defendant CTG’s application for determination of good faith settlement with respect to its settlement reached with Plaintiff.

As a threshold matter, CTG has filed a motion for determination of good faith settlement, not an application which may be brought in the alternative. Code of Civil Procedure section 877.6 provides in pertinent part:

(a)(1) Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. ... [¶] ... [¶]

(Code Civ. Proc. § 877.6(a)(1).)

As a result, JOA did not properly bring a “motion to contest,” which applies to an application for the determination of good faith settlement. (Code Civ. Proc. § 877.6(a)(2).) Nevertheless, given CTG’s substantive and timely opposition to JOA’s motion to contest, and the timely reply, the Court considers JOA’s motion to contest and all opposing and reply papers in conjunction with CTG’s motion for determination of good faith settlement.

Merits

Code of Civil Procedure section 877.6 provides in pertinent part:

(b) The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counter-affidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing.

(c) A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.

(d) The party asserting the lack of good faith shall have the burden of proof on that issue.

(Code Civ. Proc. § 877.6(a)-(d).)

The settling parties' evidence may be provided either in support of the initial motion or as "responsive counter declarations to negate the lack of good faith asserted by the non-settling contesting party." (City of Grand Terrace v. Superior Court (1987) 192 Cal. App. 3d 1251, 1262 ("City of Grand Terrace").)

The intent and policies underlying a determination of a good faith settlement under section 877.6 require that a number of factors be taken into account. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499, internal citations omitted ("Tech-Bilt").) These factors include:

		· A rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, · The amount paid in settlement, · The allocation of settlement proceeds among plaintiffs, · A recognition that a settlor should pay less in settlement than he would if he were found liable after a trial, · The financial conditions and insurance policy limits of settling defendants, and · The existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants, and · The settling defendant’s potential liability for indemnity to a non-settling defendant. (Ibid.; Far West Financial Corp. v. D & S Co. (1988) 46 Cal.3d 796, 816 (“Far West”).) There is no precise yardstick for measuring “good faith” of a settlement with one of several tortfeasors, but it must harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. To accomplish this, the settlement must be within the “reasonable range” (within the “ballpark”) of the settling tortfeasor’s share of liability for the plaintiff’s injuries. (Tech-Bilt, Inc., supra, 38 Cal. 3d at p. 499.) “Equity is the aim of section 877.6. The dual equitable goals of section 877.6 are: ‘equitable sharing of costs among the parties a
--	--	---

		(Long Beach Mem. Med. Ctr. v. Superior Court (2009) 172 Cal.App.4th 865, 872, inner citation omitted.) “[W]hether a settlement is in good faith is a matter left to the discretion of the trial court.” (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal. App. 4th 1337, 1349.) “The trial court’s discretion, however, in ruling on a motion under section 877.6 is not unlimited and should be exercised in view of the equitable goals of the statute, in conformity with the spirit of the law and in a manner that serves the interests of justice.” (Long Beach Mem. Med. Ctr. v. Superior Court (2009) 172 Cal.App.4th 865, 873 [disapproving settlement of \$200,000 for a \$2 million claim where there was evidence that settling physician was at fault and his liability was not de minimis] c.f. Cahill v. San Diego Gas & Elec. Co. (2011) 194 Cal.App.4th 939, 963-964 [trial court did not abuse its discretion in approving homeowners’ settlement of \$25,000 for \$40 million claim where trial court determined damages claim was exaggerated and plaintiff lacked any viable theory of liability against homeowners].) Here, CTG contends that its settlement with Plaintiff in the amount of \$500,000 is in good faith and is within the Tech-Bilt ballpark in light of the fact that the project manager of JOA accepted responsibility for failing to shave down the bolts after relocating the key box; that the settlement amount takes into consideration that CTG should pay less in settlement than it would if it was then found liable after a jury trial; that CTG is paying its proportionate share, and that the settlement amount is not grossly disproportionate to its share of liability as Plaintiff’s known medical bills total \$282,008.33 with insurance adjustments to \$101,118.76. CTG
--	--	---

asserts that the settlement of \$500,000 is solely allocated to Plaintiff; that CTG's financial condition and self-insurance does not defeat good faith settlement; and that there is no evidence of collusion, fraud, or tortious conduct as the settlement was the product of a compromise facilitated by arm's length negotiations between counsel after three mediation settlements and continued negotiations.

In its motion to contest, JOA contends that the proposed settlement of \$500,000 does not meet the Tech-Bilt factors because CTG's settlement is disproportionate to CTG's potential liability as it is only 14.7% of the damages sought by Plaintiff in her last settlement demand of \$3.4 million; that CTG was the general contractor responsible for the renovation project at John Wayne Airport during which the subject Incident occurred; that CTG's foreman, Jose Peralta was present and physically removed the Avis Key drop box that created the hazardous condition; and that CTG had established throughout this same project a clear and documented pattern of grinding down exposed bolts after fixture removal as mandated by the project's construction documents and confirmed by CTG's own Person Most Knowledgeable, Alex Campos, who admitted that whoever removed the key box "should have known to grind down the bolts." JOA also contends that the fifth Tech-Bilt factor — the financial condition and insurance policy limits of the settling defendant — further demonstrates that CTG's settlement is grossly inadequate as CTG's liability insurance policy applicable at the time of the Incident carries limits of \$2,000,000, and the proposed settlement of \$500,000 represents only 25% of CTG's available policy limits. JOA further asserts that this Court's inquiry under Tech-Bilt

must account for the fact that a good faith determination bars not only Plaintiff's claims but also JOA's cross-claims for indemnity and contribution against CTG, that the true value of the settlement to CTG is therefore not merely \$500,000 paid to Plaintiff, but is the extinguishment of all indemnity exposure to JOA as well, and that CTG's settlement prejudices JOA as a non-settling defendant given that JOA maintains a cross-complaint against CTG for indemnity and contribution, including under a theory of express contractual indemnity, and a finding of good faith settlement would bar JOA's cross-claims against CTG entirely.

Amount Paid in Settlement. The evidence submitted indicates that a settlement has been reached between Plaintiff and Defendant CTG in the amount of \$500,000. (ROA 472, Declaration of Wayne W. Watten ("Watten Decl."), ¶¶ 3-4.)

Rough Approximation of Plaintiff's Total Recovery and Settlor's Proportionate Liability. The most important factor is the settling party's proportionate liability. (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal. App. 4th 1337, 1350 ("Mattco Forge").) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be. (Grand Terrace, supra, 192 Cal. App. 3d at p. 1262.) There must be substantial, competent evidence of the settling parties' proportionate liability and all other Tech-Bilt factors before the court may grant a motion for good faith settlement in a contested case. (Mattco Forge, Inc., supra, 38 Cal.App.4th at p. 1351.) Under the statute, the burden of proof is on the party opposing the good faith determination. (Code Civ. Proc. § 877.6(d).)

“[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.” (Tech-Bilt, supra, 38 Cal.3d at p. 499, citations omitted.) “When testing the good faith of a settlement figure, a court may enlist the guidance of the judge’s personal experience and of experts in that field.” (Id. at pp. 499-500.)

Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement may not be the amount paid to plaintiff but rather the value of the shield against such indemnity claims. (Far West, supra, 46 Cal.3d at p. 816, fn. 16; TSI Seismic Tenant Space, Inc. v. Superior Court (2007) 149 Cal.App.4th 159, 166; accord, PacifiCare of Cal. v. Bright Medical Associates, Inc. (2011) 198 Cal.App.4th 1451, 1465.)

Here, this action arises out of a trip-and-fall accident on September 2, 2020, at John Wayne Airport, owned by Defendant/Cross-Complainant, County of Orange. (ROA 572, Declaration of Matthew G. Whitten (“Whitten Decl.”), ¶ 2.) Plaintiff alleges she tripped on two bolts protruding from the ground near the Avis rental office inside the terminal and fell, suffering personal injuries (the “Incident”). (Ibid.) Plaintiff claims general and special damages, including pain and suffering, mental and emotional distress, and past and future medical care arising out of the subject incident. (Ibid.) There is no dispute that this Incident occurred during the reconfiguration of rental car kiosks and locations in the parking terminal adjacent to the airport. (Id., ¶ 3; Declaration of Wayne W. Watten in Opposition to Motion to Contest (“Opp Watten Decl.”), ¶ 3.) JOA served

		as the project manner for the reconfiguration of the rental car kiosks. (Whitten Decl., ¶ 5.) JOA contends that the settlement of \$500,000 is grossly disproportionate to CTG’s proportionate liability because it reflects only 14.7% of the damages sought by Plaintiff in her last settlement demand of \$3.4 million. JOA provides that Plaintiff’s last global settlement demand was made in August 2025 in the amount of \$3,400,000. (Whitten Decl., ¶ 10.) However, “a plaintiff’s claims for damages are not determinative in finding good faith; rather, the court is called upon ‘to make a “rough approximation” of what the plaintiff would actually recover’ [citation], with the evaluation to be made ‘on the basis of information available at the time of settlement.’ [Citation.]” (Dole Food Co. Inc. v. Superior Court (2015) 242 Cal.App.4th 894, 904.) JOA provides no evidence supporting Plaintiff’s global settlement demand constitutes a rough approximation of what Plaintiff would actually recover. Thus, Plaintiff’s global settlement demand upon which JOA relies does not establish a rough approximation of Plaintiff’s total recovery. Instead, CTG provides that Plaintiff’s known medical bills total \$282,008.33 with insurance adjustment to \$101,118.76. (Watten Decl., ¶ 2.) JOA provides that Plaintiff’s medical billing expert, Andrew S. Morris, D.C., reviewed all past medical bills and opines that \$140,827.62 is the total reasonable value for Plaintiff’s past medical bills of \$411,091.62, and that the reasonable cost of Plaintiff’s future medical care ranges from a minimum of \$479,220 to a maximum of \$488,380. (Whitten Decl., ¶¶ 8-9, Ex. E.)
--	--	---

Neither party provides the information that was available at the time of settlement. However, given that CTG's Notice of Settlement that was filed with its motion for determination of settlement is dated February 26, 2026, and Dr. Morris' expert report is dated March 4, 2026, and the letter opining as to future medical care costs is dated March 2, 2026, it does not appear that Dr. Morris' expert report or letter was available at the time of CTG's settlement with Plaintiff. Even if Dr. Morris' opinions as to past and future medical damages are considered, they do not support that Plaintiff's rough approximation of total recovery is \$3,400,000. Instead, based on Dr. Morris's numbers, the total value of Plaintiff's past and future medical expenses totals \$629,207.62, at the high end. CTG's settlement of \$500,000 is 79.5% of the reasonable value of Plaintiff's past and future medical expenses.

JOA also asserts that CTG was the general contractor responsible for the renovation project at John Wayne Airport during which the subject Incident occurred. JOA provides that it served as the project manager of the reconfiguration project, and that on December 12, 2019, CTG was contracted by the County of Orange to act as the general contractor for the reconfiguration project for Job Order Contract MA-080-20010450. (Whitten Decl., ¶¶ 4-5, Ex. B.)

On the other hand, CTG provides evidence that the County of

Orange provided a Notice of Completion as to Phases 1 and 2 and a supplemental work order stating that construction was completed on June 23, 2020, as well as providing copies of the County of Orange purchase orders associated with the same, and a copy of a separate Job Order Contract MA-080-20010440 for Painting

Services between the County of Orange and CTG. (Opp Watten Decl., ¶¶ 4-7, Exs. A-D.)

Based on the foregoing, while JOA presents evidence of a general contractor contract, it does not establish that CTG was functioning as the general contractor for the reconfiguration project under Job Order Contract MA-080-20010450 at the time of the Incident on September 2, 2020.

JOA next asserts that CTG was directly involved in the removal of the subject drop box as on the morning of September 2, 2020, Jose Peralta, CTG's foreman, and Benajmin Oviedo, JOA's project manager were both present during the removal of the key drop box, and Jose Peralta physical removed the Avis key drop box. In support of these assertions, JOA provides excerpts of the deposition testimony of Ben Oviedo of JOA (Whitten Decl., ¶¶ 6, Ex. C.)

CTG disputes that Jose Peralta removed the key drop box, and provides Jose Peralta's deposition testimony where Peralta testifies that he has never removed or relocated a key drop box. (Watten Decl., ¶ 10, Ex. G.) CTG also provides excerpts of the deposition testimony of Alex Campos, the person most knowledgeable at CTG, who testifies that they were never given instruction to remove a key box, that he has no knowledge of anyone in the company removing the key box, that he does not know who removed the key box, that it was not their responsibility to remove the drop boxes, and that Andrew Weeks said not to get involved with moving the drop box. (Watten Decl., ¶ 11, Ex. H.) CTG additionally provides a copy of an email from Ben Oviedo dated September 8, 2020, where he states, in part: "I forgot to ask the contractor to shave down the bolts or at least put a cone on

there. It was my fault, and take responsibility for what happened.” (Watten Decl., ¶ 8, Ex. E.)

The evidence presented by the parties indicates that the extent of CTG’s proportionate liability is disputed, but as between JOA and CTG, tends to support 50% liability, at the most, for the Incident. As noted above, CTG’s settlement of \$500,000 is 79.5% of the reasonable value of Plaintiff’s past and future medical expenses based on the evidence provided by JOA. The burden of showing bad faith falls on JOA as the party opposing the good faith settlement determination, but JOA provides no evidence as to an approximation of Plaintiff’s damages for pain and suffering.

The Settling Defendant’s Potential Liability for Indemnity to a Non-Settling Defendant JOA asserts that it would be prejudiced if the motion for determination of good faith settlement was granted as it maintains a cross-complaint against CTG for indemnity and contribution, including under theories of express and equitable indemnity, which claims would be barred. However, JOA provides no support that any of its crossclaims for contribution or equitable indemnity have merit, or otherwise shows CTG’s potential liability for indemnity to JOA. JOA does not discuss, or provide evidence sufficient for the Court to evaluate, the value to shield against such indemnity claims.

Based on the foregoing, the evidence submitted to the Court supports that the amount of CTG’s proportionate liability is greatly contested but would not appear to be more than 50% such that CTG’s settlement with Plaintiff in the amount of \$500,000 in view of Plaintiff’s current and future damages, is proportionate to CTG’s possible liability.

As such, CTG's \$500,000 settlement with Plaintiff does not appear to be grossly disproportionate to what a reasonable person might estimate CTG's liability would be, and the settlement is within the ballpark of CTG's liability. JOA does not meet its burden of proof to show that CTG's settlement with Plaintiff lacks good faith.

Financial Conditions and Insurance Policy Limits. A settling defendant is not required to present any evidence of its financial condition or liability insurance policy limits. Instead, the party that contends that the settlement was not made in good faith and that has the burden of proof on the issue may present evidence on those issues to show that the settling party had the financial capacity or insurance coverage limits to pay a reasonable settlement amount. (Cahill v. San Diego Gas & Elec. Co. (2011) 194 Cal.App.4th 939, 968.)

Given that the settlement between Plaintiff and CTG appears reasonable and proportionate with CTG's liability's, CTG's insurance coverage limits of \$2,000,000 is irrelevant.

As for the remaining Tech-Bilt factors, JOA does not dispute that there is a recognition that a settlor should be pay less in settlement, that the entire settlement amount is allocated to Plaintiff, and that there is no evidence of fraud or collusion.

In consideration of the above, the Court GRANTS CTG's motion for determination of good faith settlement and DENIES JOA's motion to contest CTG's motion for determination of good faith settlement.

Request for Dismissal

		CTG requests dismissal with prejudice any and all complaints and cross-complaints in favor of Defendant in this action, pursuant to California Rules of Court, rule 3.1382, and any future claims against CTG for equitable comparative contribution, partial indemnity or comparative indemnity, based on comparative negligence or comparative fault be barred pursuant to Code of Civil Procedure section 877.6. “A motion or application for determination of good faith settlement may include a request to dismiss a pleading or a portion of a pleading. The notice of motion or application for determination of good faith settlement must list each party and pleading or portion of pleading affected by the settlement and the date on which the affected pleading was filed.” (California Rules of Court, rule 3.1382.) “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc. § 877.6(c).) “[A] tort defendant who has entered into a good faith settlement within the meaning of section 877.6, subdivision (c) is absolved of any further liability for all equitable indemnity claims, including claims seeking total equitable indemnity.” (Far West Financial Corp. v. D&S Co. (1988) 46 Cal.3d 796, 817.) An implied contractual indemnity is a form of equitable indemnity so that a good faith settlement relieves a settling defendant from a further claim for indemnity based on an implied contractual indemnity theory. (Bay Development, Ltd. v. Superior Court (1990) 50 Cal.3d 1012, 1029-
--	--	--

		1031.) However, a good faith settlement would not preclude an indemnity action based on an express indemnity agreement. (Id. at p. 1032.) The Court GRANTS CTG’s request to dismiss, with prejudice, Plaintiff’s Complaint as against CTG. The Court GRANTS CTG’s request to dismiss, with prejudice, JOA’s Cross-Complaint (ROA 173), but only as to the causes of action for Implied Equitable Indemnity and Contribution which are barred by Code of Civil Procedure section 877.6(c.) CTG to give notice.
108	White vs. Smart Health Diagnostics Company 25-01521881	Motion to Seal Plaintiff Lance White filed a motion to seal the following document: (1) unredacted Request for Entry of Default, (2) unredacted Judgment, (3) unredacted Declaration of David A. Lowe in Support of Plaintiff’s Motion, and (4) unredacted Declaration of Lance White in Support of Plaintiff’s Motion conditionally lodged under seal on March 13, 2025. The Motion is unopposed. On March 23, 2026, the parties filed a “Joint Stipulation to Dismiss Action and for Court to Retain Jurisdiction to decide Motion to Seal.” (ROA 79.) On March 27, 2026, Plaintiff Lance White filed a Request for Dismissal without prejudice as to the entire action of all parties and all causes of action with the Court retaining jurisdiction. (ROA 83.) Given the above, the Motion is VACATED.

		Plaintiff to give notice.
110	Hang vs. Garden Grove Post Acute LLC 25-01536685	1. Motion to Compel Arbitration – Off Calendar per Notice of Withdrawal. 2. Case Management Conference remains on calendar.